

Court No. - 21

Case :- WRIT - C No. - 2068 of 2023

Petitioner :- Baboo Lal Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Chandra Bir Singh

Counsel for Respondent :- K.K.Rao,Gaurav Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Matter taken up in the revised call.

Learned counsel for the petitioner is present.

Sri Baleshwar Chaturvedi, learned counsel for respondent nos. 1 to 3 are present.

Sri Gaurav Tripathi, learned counsel for respondent no. 4 is not present.

List as fresh on 28.1.2023.

Learned counsel for the petitioner shall inform Sri Gaurav Tripathi, Advocate about the order passed today in the Court.

Order Date :- 20.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

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Hon'ble Vikram D. Chauhan,J.

Heard Sri Chandra Bir Singh, learned counsel for the petitioner, Sri Gaurav Tripathi, learned counsel for respondent No. 4 and Sri Baleshwar Chaturvedi, learned counsel for respondents No. 1, 2 and 3.

The petitioner is aggrieved by notice dated 12.11.2022 issued by the respondent No. 4 for recovery of a sum of Rs. 3,46,719/- from the petitioner towards electricity dues.

The case of the petitioner is that the the bill of electricity which has been issued in the name of the petitioner is not correct. He has filed objections against the same by registered post on 22.11.2022 and prays that the same may be directed to be decided by the respondents.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the respondent Corporation states that respondent No. 4. is competent to take decision in the matter under Clause 6.5 of the Electricity Supply Code, 2005.

Accordingly, the petition is disposed of with a direction to respondent No. 4 to pass a speaking order on the objection of the petitioner dated 22.11.2022 within a period of four weeks from the date of receipt of true attested copy of the instant order alongwith copy of the objection.

Until the objections are decided, the impugned recovery will remain in abeyance. It will thereafter abide by the decision that would be taken by respondent No. 4 on the objection of the petitioner.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 28.1.2023//Ruhi